

Circumstantial Evidence (Sharad Sarda & Pradeep Sharma 2024)

Formula: $P \cdot A \cdot N \cdot C \cdot H$ (Panchsheel Circumstantial Test) | Subject: Criminal Law & Evidence

I. COGNITIVE FORMULA & MNEMONIC BREAKDOWN

- â€ [P] - Proved Circumstances: Circumstances from which guilt is drawn must be fully established
- â€ [A] - All Facts Consistent: Facts proved must be consistent ONLY with the hypothesis of guilt
- â€ [N] - Nature Conclusive: The circumstances must be of a conclusive nature and tendency
- â€ [C] - Chain Complete: The chain of evidence must be so complete as to leave no reasonable ground for innocence
- â€ [H] - Hypothesis Excluded: Must exclude every possible hypothesis except that the accused is guilty

II. PRACTICAL USAGE IN JUDICIAL EXAMINATIONS

In competitive judicial services Mains, state all 5 golden principles verbatim from Sharad Birdhichand Sarda (1984) and Bombay HC Pradeep Sharma (2024)!

III. FREQUENT PRELIMS & MAINS TRAPS TO AVOID

- â€ Always verify exceptions and statutory provisos before applying the direct formula.